

Justification for an Exception to Fair Opportunity

1. **AGENCY AND CONTRACTING ACTIVITY:** This is a Justification and Approval for an Exception to the Fair Opportunity Process. The requiring activity is for the Public Works Department; the contracting activity is the Naval Facilities Engineering Systems Command Southwest (NAVFAC SW), Facilities Engineering and Acquisition Division (FEAD) San Diego.

2. DESCRIPTION OF CONTRACT ACTION:

☐ New Requirement

☐ Follow-on Order

☐ Existing Order Number:

☒ Order against: Multiple Award ID/IQ Contract Number:

N62473-21-D-3602

☐ Pricing

☒ Firm-Fixed Price

☐ Time & Materials

☐ Cost Type

☒ Funds:

[REDACTED]

☐ Other Funds:

3. **DESCRIPTION OF REQUIRED SUPPLIES/SERVICES:** The proposed acquisition is to issue a sole source task order under the Multiple Award Service Contract (MASC) N62473-21-D-3602 to Chugach Consolidated Solutions, LLC (Chugach) (Cage Code: 6XZF0) without affording fair opportunity to other MASC awardees pursuant to the authority identified in Section 4 of this Justification and Approval (J&A). The proposed acquisition is to acquire urgent maintenance services for the Emergency Critical Emergency Life (ECEL) generators located at Naval Medical Center San Diego (NMCSO).

The maintenance services for the NMCSO ECEL generators are used to power life and safety critical requirements during a power outage and are controlled via an intricate interplay between the controls system and the electrical grid requirements and information feedback loop. The lack of regular preventative maintenance of the ECEL generators has the potential to render the ECEL system severely diminished. Failure to perform the required maintenance significantly reduces the capacity of the cogeneration plant operators to safely and effectively operate the electrical system at NMCSO to maintain continuity of power to life support systems at the hospital.

The estimated dollar value will be set at and limited to [REDACTED] based on the Rough Order magnitude (ROM), which utilizes historical data and input from Government subject matter experts. The performance period to complete the required work will be 365 days. The task order will be funded by Fiscal Year [REDACTED].

4. **AUTHORITY AND DEMONSTRATION THAT NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:** The statutory authority is 10 United States Code (U.S.C.) Section 3406(c)(1), as implemented by FAR 16.505(b)(2). The Contracting Officer shall give every awardee a fair opportunity to be considered for a delivery/task order exceeding the micro-purchase threshold, unless one of the following statutory exceptions applies:

☒ The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays [FAR 16.505(b)(2)(i)(A)];

SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

Justification for an Exception to Fair Opportunity

☐ Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized [FAR 16.505(b)(2)(i)(B)];

☐ The order-must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order[FAR 16.505(b)(2)(i)(C)];

☐ It is necessary to place the order to satisfy a minimum guarantee [FAR 16.505(b)(2)(i)(D)]; or

☐ For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that purchase-be made from a specified source [FAR 16.505(b)(2)(i)(E)]

Rationale/explanation to support cited authority: Acquisition of the maintenance services under this MASC Sole-Source Task Order is necessary because the need for this maintenance contract is urgent, as there are monthly maintenance requirements for the ECEL generators to protect and preserve the warranty of these expensive and life-critical equipment.

The acquisitions of these maintenance services require immediate action and the use of traditional acquisition methods is not available because the Government would incur unacceptable delays. This proposed contract action to obtain the required services is necessary without unnecessary delays in order to protect the health and safety of the Government personnel and users of the Government hospital facilities, including hospital patients and staff, and to prevent damage to the mission critical components in the ECEL Emergency Generator system.

Pursuant to the authority of 10 U.S.C. Section 3406(c)(1), as implemented by FAR 16.505(b)(2)(i)(A). Exceptions to the fair opportunity process, this J&A requests the authority to award a Sole-Source Task Order to Chugach without affording fair opportunity to other MASC awardees because the need for the required services is so urgent that providing fair opportunity procedures would result in unacceptable delays. Chugach is currently onsite performing service work in and around the San Diego Metro area, and they are capable of performing the emergency work within the required time. Chugach has performed and is performing successfully on other service contracts with a similar scope of work.

5. FAIR AND REASONABLE COST DETERMINATION: The Contracting Officer has determined the anticipated cost to the Government of the services and supplies covered by this justification will be fair and reasonable.

6. ANY OTHER FACT SUPPORTING THE JUSTIFICATION: In accordance with FAR 5.202(a)(6), a notice of the proposed acquisition will not be published because of the extreme urgency of this contract action as noted above and the Government would incur unacceptable delays if the Government complies with the competitive procedures to solicit to all MASC

SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

October 2023

Justification for an Exception to Fair Opportunity

awardees, and adheres to the time periods and other procedural requirements specified for soliciting the required work in accordance with FAR 5.203 – Publicizing and Response Time.

7. ACTIONS TO INCREASE COMPETITION: The contract action is a one-time, sole-source procurement for urgent maintenance services that are necessary to protect the health and safety of the Government personnel and users of Government facilities, including hospital patients and staff, and prevent damage to mission critical Government facilities. If NAVFAC SW determines that a follow on task order is required, a competitive solicitation will be issued to meet the need of NMCSO.

8. TECHNICAL/REQUIREMENTS/FUNCTIONAL LEAD CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification is complete and accurate to the best of my knowledge and belief.

Signature: [REDACTED]

Phone: [REDACTED]

Name/Title: [REDACTED], [REDACTED]

9. LEGAL SUFFICIENCY REVIEW

I have reviewed and determined this Justification is legally sufficient.

Signature: [REDACTED]

Name/Title: [REDACTED]

10. CONTRACTING OFFICER CERTIFICATION

Upon the basis of the above justification, I hereby approve the Exception to Fair Opportunity for the proposed procurement(s) described herein using pursuant to the 10 U.S.C. Section 3406(c), as implemented by FAR 16.505(b)(2).

Signature: [REDACTED]

Name/Title: [REDACTED]